

in hand, the issue of reimbursement of the appeal fee should therefore not have been referred to the board and the board was not empowered to decide on this issue.

11.4.3 Examining division should have rectified decision

In T 647/93 (OJ 1995, 132) it was pointed out that when the examining division did not make use of the possibility of granting interlocutory revision after the **mistake** had been pointed out in the grounds of appeal, this was normally deemed to constitute a procedural violation justifying the reimbursement of the appeal fee (see also T 808/94, T 898/96, T 861/03, T 1113/06, T 971/06, J 7/07; see also T 685/98, OJ 1999, 346).

In T 183/95 the board held that the appellant's request for reimbursement of the appeal fee in the event of interlocutory revision could not be granted under R. 67, first half sentence, EPC 1973, since the examining division had not rectified its decision. However, it held that a refund of the appeal fee may be ordered under R. 67, second half sentence, EPC 1973, if the appeal is allowed and the board finds this equitable by reason of a substantial procedural violation. In T 2528/12 the board also declined to order reimbursement, because although interlocutory revision had not been granted, as it should have been, that was not a substantial procedural error. That the grant proceedings had taken longer as a result had not adversely affected the appellant in a legal sense.

In T 794/95 the board did not consider it equitable to order the reimbursement of the appeal fee, since the examination procedure up to the decision under appeal was not tainted with any failure and the necessity for the appellant to file an appeal emerged exclusively from the substance of the decision, not because of any procedural shortcomings up to this stage and equally not from the later incorrect handling of the appeal by the examining division (i.e. the failure to rectify its decision).

In T 685/98 (OJ 1999, 346) the board held that where a fundamental procedural right had manifestly been violated in a refusal pursuant to Art. 97(1) EPC 1973, or in the foregoing examination procedure, a further substantial procedural violation occurred if the examining division failed to grant interlocutory revision on appeal (following T 647/93, OJ 1995, 132; see also T 1765/13), since such a right had to be safeguarded irrespective of the substantive merits of the case.

In T 898/96 the board took the view that the decision of the examining division to refuse the application having regard to Art. 113(2) EPC 1973 should have been rectified by way of interlocutory revision. The failure to rectify such a decision in this way was a substantial procedural violation. However, the board did not consider the refund of the appeal fee to be equitable because the applicant did not approve this text of the application until he filed an appeal.

In T 704/05 the board found that the examining division could have set its decision aside by way of interlocutory decision pursuant to Art. 109(1) EPC 1973. However, given that the examining division was expressly precluded from giving its reasons for not granting interlocutory revision, it was not open to the board to criticise this omission. The mandatory but necessarily silent judgment made pursuant to Art. 109(1) EPC 1973 as to whether an

appeal refuted the reasons for a refusal was not an exercise of discretion and ipso facto left no room for an inquiry as to whether discretion had been properly exercised. The board was aware that a number of decisions of the boards of appeal had taken a different view on this point – to the extent of sometimes castigating such omission as a substantial procedural violation – but respectfully suggested that these decisions had not given sufficient weight to the implications of the silence imposed on the examining division by Art. 109(2) EPC 1973.

In case T.1982/07 the board said that it was fundamental to the principle of fair trial that in the examination an applicant, when confronted with new prior art documents, was not only given the right to be heard, but also the right to react thereto by amending the claims in order to overcome the prior art references. In the case at issue, the way the examining division exercised its discretion under R.86(3) EPC 1973 (now R.137(3) EPC) was erroneous, as it did not allow the applicant to react appropriately, but rather tied its hands to an extent neither mandated by procedural efficiency nor justified in the light of the prior art documents. The examining division thus exercised its discretion in an unduly restrictive manner, thereby committing a substantial procedural violation. It would have been incumbent on the examining division to rectify the decision pursuant to Art. 109(1) EPC, but this was not done. The board ordered the remittal to an examining division that had not previously dealt with this case.

11.4.4 A rectification decision maintaining earlier decision

In T.691/91 the board held that Art. 109 EPC 1973 provided for two legally viable alternatives: to maintain or to annul the decision which was appealed. In the case at issue, the examining division had chosen a third way: to maintain the earlier decision by issuing a decision on rectification, which resulted in the appellant having to file a second appeal against the decision on rectification. This alternative was not covered by the provisions of Art. 109 EPC 1973. This decision was thus held to be ultra vires and the board ordered reimbursement of the second appeal fee. Reimbursement of the first appeal fee was also ordered because a violation of the right to be heard had occurred during the examination proceedings (see also T.252/91).

11.4.5 Re-opening examination after rectification

In T.142/96 the practice of re-opening examination after rectification was held to be contrary to the principle of procedural economy underlying Art. 109 EPC 1973 and so constituted a substantial procedural violation.

In T.2247/09 the examining division had granted interlocutory revision, then proceeded with the examination of the new subject-matter put forward with the appeal, before refusing the application again in its second decision. The appellant claimed that he had had to pay two appeal fees in order to have the claims considered by a board of appeal. The board noted that the reasons given in the examination division's second decision differed from those given in its first decision. Moreover, the decision to grant interlocutory revision had been correct because the applicant's new request had removed the reasons for the

decision under appeal. The mere fact that the further examination again resulted in the refusal of the application did not constitute a substantial procedural violation.

11.5. Allowability of the appeal

R. 103(1)(a) EPC stipulates as a precondition for reimbursement that the appeal must be allowable. In J 37/89 (OJ 1993, 201) the board stated it was clear from the wording and purpose of the provision that "allowable" was to be understood to mean that the board of appeal, in substance at least, "follows" the relief sought by the appellants, in other words that the board allows their requests (see also T 1111/09). In J 18/84 (OJ 1987, 215) the board held that the fact that the appeal was allowed only in part was no impediment to a refund (see also T 129/01, T 604/01, T 863/08, J 1/13).

11.6. Substantial procedural violation

One of the preconditions for reimbursement of the appeal fee under R. 103 EPC is that a substantial procedural violation has taken place. A "substantial procedural violation" is an objective deficiency affecting the entire proceedings (J 7/83, OJ 1984, 211). Whether or not there has been a substantial procedural violation is to be determined on an objective basis (J 32/95, OJ 1999, 733; T 160/09).

11.6.1 Violation must be of a procedural nature

In T 12/03 the board stated that a substantial procedural violation is an objective deficiency in the procedure in the sense that the rules of procedure have not been applied in the manner prescribed by the Convention. According to J 6/79 (OJ 1980, 225), the giving of incorrect information by the EPO about the rules of procedure, which, if followed by the applicant, could lead to the same consequences as the incorrect application of those rules, could also be considered as lying within the scope of a "procedural violation". In T 690/06 the board held that an error of judgment on substantive issues by the examining division did not constitute a "procedural" violation (see also T 698/11, T 658/12). See also in this chapter V.A.11.6.10.

In T 990/91 the board held that the lack of opportunity to reply to a new argument from the examining division in its decision to refuse the application that was supererogatory and incidental could not be considered to be a procedural violation (see also T 1085/06).

In T 683/14 the board held that the examining division had committed a substantive error rather than a procedural one. The procedural consequences were caused exclusively by the implementation of the division's erroneous substantive position and did not constitute an independent procedural violation for the purposes of R. 103(1)(a) EPC. The examining division had wrongly refused to take into account a confidentiality agreement, having considered that the debate had been closed and a decision had been taken during oral proceedings. The board explained that the examining division had erred in that the oral proceedings had not been terminated by a formal decision and that even if the debate had been formally closed, it could have been re-opened. The board cited T 595/90 and held that, on re-opening the debate, considerations analogous to those that apply to the Boards

of Appeal apply to the department of first instance: "[o]bservations submitted [after closing the debate] could only be taken into account if the Board reopened the debate (Art. 113 EPC) which depends on its discretion."

In T 68/16 the board noted that the opposition division had not used the problem-solution approach. The board stated that this fact in itself did not constitute a substantial procedural violation. The problem-solution approach was not enshrined in the EPC and its use was not mandatory. The board agreed that, as a rule, a division that does not use the problem-solution approach should indicate its reasons for doing so, if only to dispel the impression that it acts arbitrarily. However, the Guidelines for Examination only stated that any "deviation from this approach should be exceptional" (see Guidelines G-VII, 5 – November 2017 version; this passage was subsequently deleted in the November 2018 version) and did not require a justification.

11.6.2 Violation must be substantial and affect the entire proceedings

In T 682/91 the board of appeal emphasised that a procedural violation which did not adversely affect the rights of the parties could not be considered substantial. The seriousness of a procedural violation derived from its adverse effects.

In J 14/99, as in J 15/99, J 21/98 (OJ 2000, 406), J 22/98 and J 6/99, it was decided that a procedural violation which had not played any part in the decision could not be considered substantial (see also T 2385/10). In T 2249/08 the board found it a requirement that the criticised discretionary decision of the department of first instance must be decisive for the outcome of the decision under appeal. In T 49/13 the board held that an error which would not have led to a different outcome of the proceedings was not a substantial procedural violation (see also T 1340/10, T 1740/06).

In T 5/81 (OJ 1982, 249) it was stated that an alleged violation affecting a part of the decision other than its ratio decidendi could not be a substantial violation within the meaning of R. 67 EPC 1973 (see also T 959/00).

In T 712/97 the board held that the opposition division had considered the respondent's experimental report, but had not relied on it in a way adverse to the appellant. Therefore, the refusal to admit the appellant's experimental report into the proceedings, while a violation of the appellant's right to present comments on the respondent's experimental report, had no substantive effect on the outcome of the proceedings and did not amount to a substantial procedural violation.

In T 219/93 the board remitted the case to the department of first instance since it clearly called for revision under Art. 109 EPC 1973. The contested decision had also been inadequately reasoned on one point within the meaning of R. 68(2) EPC 1973. Nevertheless, the refusal had been made principally on other grounds, and the board did not consider the procedural violation to be so substantial within the meaning of R. 67 EPC 1973 that reimbursement of the appeal fee would be equitable.

In T 107/05 the board held that the opposition division's lack of consideration of the opponent's arguments on E5 had not been conclusive for the outcome of the appealed decision. The opposition division had considered E5 "acting of its own motion" and had assessed within its power of discretion that it was not relevant – an analysis confirmed in the appeal proceedings. The mistake made by the opposition division could be regarded as a procedural violation but in this particular case not as a substantial one.

In T 1607/08 (see also T 2246/13) a procedural violation of the principle of the protection of legitimate expectation occurred. Since this violation led to the revocation of the patent and came as a surprise to the patent proprietor, it constituted a substantial procedural violation (see also T 1423/13). In T 2321/08, the examining division violated the procedure foreseen in Art. 94(3) EPC. This procedural violation was considered substantial because its immediate consequence was the refusal of the application.

In T 1232/16 the board held that although the board normally orders reimbursement of the appeal fee on account of a substantial procedural violation, this would not be equitable in the case in hand in view of the refusal additionally being based on other grounds not tainted by the procedural violation.

11.6.3 Procedural violation must be committed by the department whose decision is under appeal

In T 469/92 the alleged procedural violation was not an act of the opposition division, whose decision was the subject of the appeal, but instead that of the examining division. Even if such an act were in breach of the procedural requirements of the Convention, a board of appeal would not have the power to order reimbursement.

In T 1875/07 the board stated that a substantial procedural violation could only be committed by one of the departments charged with the procedure mentioned in Art. 15 EPC 1973, not by the President acting under Art. 10 EPC 1973. Therefore, the non-disclosure to the public of the details of a system for performance evaluation for examiners cannot amount to a substantial procedural violation.

11.6.4 Search

In T 1411/08 and T 1515/07 the boards considered that the examining division had to be held to have committed a substantial procedural violation because it had not performed an additional search that was manifestly necessary (see also T 1924/07). In T 1924/07 the board held that a distinction had to be drawn between, on the one hand, whether the examining division had acted despite realising that the features were technical and not notorious, thereby indicating a situation where a search was "manifestly necessary" (cf. T 1515/07 and T 1411/08), and on the other hand, whether the features had been erroneously overlooked or misjudged, i.e. an "error of judgment" had occurred (cf. T 690/06 and T 698/11); the latter case could not be considered a procedural violation (see in this chapter V.A.11.6.10).